02 Demokratie, Rechtsstaat, Gewaltenteilung

Democracy, rule of law, separation of powers · Lesson and all exam questions

15 questions · about 1.5 of your 33 exam questions come from this topic · 5 to memorize, 10 common sense

> Four words describe the whole German system: republic, democracy, federal state, rule of law.

In 60 seconds

- Germany is a **republic** (not a monarchy) and a **democratic and social federal state** (Bundesstaat).
- **Volkssouveränität**: all state power comes from the people.
- **Rechtsstaat**: everyone, including the state, must obey the law.
- Power is split three ways: Legislative, Executive, Judiciary. The press is not one of them.

What kind of state

- Germany is a **Republik** (republic), so it is **not a monarchy**. common sense Q22 Q34
- The official formula: Germany is **'ein demokratischer und sozialer Bundesstaat'** (a democratic and social federal state). The look-alike 'sozialer und **sozialistischer** Bundesstaat' is wrong: Germany is not socialist. In the short versions, pick **Bundesstaat** (not Staatenbund, Staatenverbund or Zentralstaat). Q26 Q27 **Q38**

Power to the people

- **Volkssouveränität** means **'Alle Staatsgewalt geht vom Volke aus'**: all state power comes from the people. common sense Q52 Q61

Rule of law (Rechtsstaat)

- **Rechtsstaat** = all residents **and the state itself** must obey the laws. common sense Q3 Q53
- Not compatible with a Rechtsstaat: people being **arrested by a private police force without reason**. common sense Q51
- A democracy has a free press, so **press censorship** (Pressezensur) is **not** a feature of German democracy. common sense Q30

Separation of powers (Gewaltenteilung)

- Three powers: **Legislative** (makes laws: Bundestag and Bundesrat), **Exekutive** (government, administration, police) and **Judikative** (the courts). **Q60 Q63**
- The **press** is sometimes called the 'fourth power', but it is **not a state power**. '**Direktive**' is not a power at all. **Q32 Q54**

Watch out

- 'Was gehört **nicht** zur Exekutive?' The answer is **the courts**: they are the Judikative. Q63

All 15 exam questions of this topic

Frage 22 · common sense

Was für eine Staatsform hat Deutschland?

What form of government does Germany have?

✓ **Republik** (Republic)

Frage 34 · common sense

Was ist Deutschland nicht?

What is Germany NOT?

✓ **eine Monarchie** (a monarchy)

Frage 26 · common sense

Deutschland ist ...

Germany is ...

✓ **ein demokratischer und sozialer Bundesstaat.** (a democratic and social federal state.)

Frage 27 · common sense

Deutschland ist ...

Germany is ...

✓ **ein Bundesstaat.** (a federal state.)

Frage 38 · memorize

Die Bundesrepublik Deutschland ist ein demokratischer und sozialer ...

The Federal Republic of Germany is a democratic and social ...

✓ **Bundesstaat.** (federal state.)

Frage 52 · common sense

Was bedeutet "Volkssouveränität"? Alle Staatsgewalt geht vom ...

What does "popular sovereignty" mean? All state authority emanates from the ...

✓ **Volke aus.** (people.)

Frage 61 · common sense

Was bedeutet "Volkssouveränität"?

What does "popular sovereignty" mean?

✓ **Die Staatsgewalt geht vom Volke aus.** (State power originates from the people.)

Frage 3 · common sense

Deutschland ist ein Rechtsstaat. Was ist damit gemeint?

Germany is a constitutional state (Rechtsstaat). What does this mean?

✓ **Alle Einwohnerinnen/Einwohner und der Staat müssen sich an die Gesetze halten.** (All residents and the state must abide by the laws.)

Frage 53 · common sense

Was bedeutet "Rechtsstaat" in Deutschland?

What does "Rechtsstaat" (rule of law) mean in Germany?

✓ **Der Staat muss die Gesetze einhalten.** (The state must abide by the laws.)

Frage 51 · common sense

Zu einem demokratischen Rechtsstaat gehört es nicht, dass …

It is NOT part of a democratic rule-of-law state that …

✓ **Menschen von einer Privatpolizei ohne Grund verhaftet werden.** (people are arrested without cause by a private police force.)

Frage 30 · common sense

Was ist kein Merkmal unserer Demokratie?

What is NOT a feature of our democracy?

✓ **Pressezensur** (press censorship)

Frage 32 · memorize

Was ist keine staatliche Gewalt in Deutschland?

Which is NOT a branch of state power in Germany?

✓ **Presse** (Press)

Frage 54 · memorize

Was ist keine staatliche Gewalt in Deutschland?

Which is NOT a branch of state power in Germany?

✓ **Direktive** (Directive)

Frage 60 · memorize

In Deutschland gehören der Bundestag und der Bundesrat zur …

In Germany, the Bundestag and Bundesrat belong to the …

✓ **Legislative.** (Legislature.)

Frage 63 · memorize

Was gehört in Deutschland nicht zur Exekutive?

What does NOT belong to the executive branch in Germany?

✓ **die Gerichte** (the courts)

Study files for the Einbürgerungstest (Bayern). Answers from the official BAMF catalog. The lesson and translations are study aids, not official texts.